

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 1503

By: Daniels of the Senate

and

Lepak of the House

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10 COMMITTEE SUBSTITUTE

11 An Act relating to the Choosing Childbirth Act;
12 amending 63 O.S. 2021, Section 1-740.17, as amended
13 by Section 2, Chapter 371, O.S.L. 2024 (63 O.S. Supp.
14 2025, Section 1-740.17), which relates to grants to
15 private organizations for services; allowing out-of-
16 state organizations to receive grants; and providing
17 an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-740.17, as
20 amended by Section 2, Chapter 371, O.S.L. 2024 (63 O.S. Supp. 2025,
21 Section 1-740.17), is amended to read as follows:

22 Section 1-740.17. A. The State Department of Health shall make
23 grants, as directed in subsection B of this section, from funds
24 appropriated by the Legislature for the Choosing Childbirth Act.

1 B. The purpose of the grants shall be to reimburse private
2 organizations ~~in this state~~ for the reasonable expenses of programs
3 providing the services listed in subsection C of this section. The
4 Department shall make grants both directly to the private
5 organizations and to one or more grant-supervising entities, who
6 shall reimburse the private organizations.

7 C. Reimbursable services provided under the Choosing Childbirth
8 Act shall include:

9 1. Providing information on, referral to and assistance in
10 securing the services of relevant existing programs or agencies that
11 assist women in this state to carry their children to term, and/or
12 providing services that assist women to carry their children to term
13 including, but not limited to, agencies and programs that will
14 provide:

- 15 a. medical attention for the pregnant woman for the
16 duration of her pregnancy including, but not limited
17 to, obstetric ultrasounds,
- 18 b. mental health and substance abuse services,
- 19 c. nutritional support services,
- 20 d. housing assistance,
- 21 e. transportation assistance,
- 22 f. adoption services,
- 23 g. education and employment assistance, and
- 24 h. parenting education and support services;

1 2. Providing women in this state, through in-person community
2 outreach and telecare, information and/or services that encourage
3 and assist them to carry their children to term; and

4 3. Providing services including, but not limited to, health
5 care services to mothers and infants up to three (3) years
6 postpartum for the purpose of reducing the rates of maternal
7 mortality and infant mortality in this state by three percent (3%)
8 not later than July 1, 2026; provided, however, no funds shall be
9 provided to an organization that provides, or whose affiliates
10 provide, abortion services.

11 D. To be eligible for a service grant, an organization shall:

12 1. Be registered with the Secretary of State as a not-for-
13 profit corporation ~~located in this state;~~

14 2. Have the grant amount approved by:

15 a. the grant-supervising entity, if the grant was
16 provided to the private organization by a grant-
17 supervising entity, or

18 b. the Department, if the grant was provided directly to
19 the private organization by the Department;

20 3. For services described in paragraphs 1 and 2 of subsection C
21 of this section, provide each pregnant woman counseled with accurate
22 information on the developmental characteristics of unborn children
23 including offering the printed information described in Section 1-
24 738.3 of this title;

1 4. Assure that the grant's sole purposes are to assist and
2 encourage women to carry their children to term and to maximize
3 their potentials thereafter as provided in paragraphs 1 and 2 of
4 subsection C of this section or to reduce the rates of maternal
5 mortality and infant mortality in this state as provided in
6 paragraph 3 of subsection C of this section; and

7 5. Assure that none of the funds provided pursuant to the
8 Choosing Childbirth Act, nor any other funds or services provided by
9 the organization, are used to encourage or counsel a woman to have
10 an abortion not necessary to prevent her death, to provide her such
11 an abortion or to refer her for such an abortion.

12 E. All client-facing services funded under the Choosing
13 Childbirth Act, including assessment, case management, counseling,
14 education, and referral services delivered in person or via
15 telecare, shall be provided by personnel who are domiciled within
16 the State of Oklahoma at the time such services are rendered and
17 who, where applicable, hold an active Oklahoma license. For
18 purposes of this section, "client-facing staff" means any individual
19 who, through interactive audio, video, telephone, text, or other
20 electronic communication, directly engages with program participants
21 for intake, assessment and evaluation of needs related to pregnancy
22 or parenting, development of a care plan and supports, counseling or
23 mentoring on pregnancy, parenting, adoption, life skills, or
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1 employment readiness, or referrals and assistance in securing
2 services described in subsection C of this section.

3 F. Telecare services pursuant to this act shall comply with all
4 Oklahoma telecare requirements, including secure communication,
5 privacy protections, and documentation of the location at which
6 services are rendered, and client records shall document the
7 physical location of the client-facing staff for each encounter.

8 SECTION 2. This act shall become effective November 1, 2026.

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10 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
11 OVERSIGHT, dated 04/16/2026 - DO PASS, As Amended.
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